

Parties are therefore to appear for hearing, with DGDG to advise the court as to whether it prefers to return to arbitration, to seek the new fees and costs it tried to claim in its new petition, or elects to have the court correct and confirm the arbitration award for judgment in the amount of \$37,238.85.

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**SHARON DAILEY vs. ROSEANN TORRES; ET AL.**  
**Case No. CU26-02756**

Defendants' Motion for Order Declaring Plaintiff Vexatious Litigant

TENTATIVE RULING

**THE PARTIES ARE TO APPEAR.** At the hearing, the Court's tentative ruling is as follows.

Defendants ROSEANN TORRES and TORRES LAW GROUP move for an order declaring self-represented Plaintiff SHARON DAILEY a vexatious litigant, requiring her to post security in the instant litigation, and subjecting her to a prefiling order prohibiting initiation of new legal actions without first obtaining the approval of the presiding judge of the court in which the action is proposed to be filed.

**Judicial Notice.** The court takes judicial notice under Evidence Code section 452, subdivision (d) of the records of six cases Plaintiff has filed in propria persona federal court and Solano County.

**Vexatious Litigant Law.** The "vexatious litigant" law exists to curb misuse of the court system by those acting in propria persona who repeatedly file groundless lawsuits or attempt to relitigate issues previously determined against them. (*Garcia v. Lacey* (2014) 231 Cal.App.4th 402, 406.) Code of Civil Procedure section 391, subdivision (b) relevantly defines a "vexatious litigant" as a person who (1) maintains at least five actions in pro per within the preceding seven years and suffers final adverse determinations in each, (2) repeatedly attempts in pro per to relitigate the adversely-determined actions or the validity of the determination, or (3) within a given litigation repeatedly makes frivolous filings or engages in other frivolous and/or delaying tactics in pro per. A vexatious litigant can, upon a defendant's motion, be ordered to post security in order to continue with a case in which there is not a reasonable probability of the vexatious litigant prevailing. (Code Civ. Proc., § 391.1.) A vexatious litigant can also be subject to a prefiling order, on a defense motion or the court's own motion, that prohibits him from filing any new litigation in pro per in this state unless he obtains approval from the presiding judge of the court in which the filing is to occur. (Code Civ. Proc., § 391.7.)

For purposes of determining how many "litigations" a person has maintained within the last seven years, a "litigation" includes an appeal or civil writ proceeding. (*McColm v.*

*Westwood Park Association* (1998) 62 Cal.App.4th 1211, 1216.) Relatedly, appeals that are voluntarily dismissed or even involuntarily dismissed for procedural defects count as “finally determined adversely” to the purported vexatious litigant. (*Karnazes v. The Lauriedale Homeowners Association* (2023) 96 Cal.App.5th 275, 280.)

Plaintiff maintained six actions in pro per, including appeals, in the seven years before this motion was filed on May 27, 2026 and suffered adverse final determinations in each of them. (Declaration of Pascale Gagnon in Support of Motion at ¶¶ 4-25, Exhibits H-BB, KK.) She is therefore a vexatious litigant per Code of Civil Procedure section 391.1, subdivision (b)(1).

The court finds Plaintiff does not have a reasonable probability of prevailing in the instant action. Plaintiff brings claims for legal malpractice based on Defendants’ representation of her in three different cases (all distinct from the six cases demonstrating her vexatious litigant status). Plaintiff brings a claim for breach of fiduciary duty that is wholly dependent on the claims of malpractice.

On CU26-01594 *Dailey v. Brar* Plaintiff presents no evidence whatsoever that she was harmed by the alleged failure on Defendants’ part to file her action within the statute of limitations. Examination of the court file shows that the defense never filed any sort of motion or other adverse document raising the statute of limitations. There is no evidence before the court that negligent failure to observe the statute of limitations caused Plaintiff any harm.

On FCS058766 *Dailey v. Mineni* Plaintiff again presents no evidence that she was harmed by alleged malpractice, now taking the form of negligent failure to uncover evidence raising a triable issue of material fact in opposition to summary judgment. The motion for summary judgment came from Defendants Mineni and County of Solano. (Declaration of Roseann Torres in Support of Motion (“Torres Dec.”) at ¶ 11, Exhibit EE.) Plaintiff’s own declaration in opposition to the present motion states that she reviewed body camera footage produced by the defense in that case and realized that her claims against Mineni were unfounded because Mineni did not handcuff her, point a gun at her, or detain her when she was arrested. (Declaration of Sharon Dailey in Support of Opposition (“Dailey Dec.”) at ¶¶ 41-42.) Plaintiff does not explain how the body camera footage, which she labels “newly produced evidence” that she expected Defendants to properly analyze and incorporate into her case, shows that Defendants negligently failed to properly oppose summary judgment.

On FCS058487 *Dailey v. Solano County Sheriff* there is, again, no evidence from Plaintiff of any harm from alleged negligence in failing to file an amended complaint. Per examination of the court file she not only had a motion pending for leave to file an amended complaint at the time the present motion was filed but that motion for leave in FCS058487 was granted on August 7, 2026.

**Conclusion.** Defendants’ motion is granted. The court orders that Plaintiff is declared a vexatious litigant within the meaning of Code of Civil Procedure section 391,

subdivision (b)(1). Plaintiff must furnish \$10,000 security for the instant litigation within thirty days of the date of this order. Failure to furnish security will result in dismissal of this action. (Code Civ. Proc., § 391.4.) The court orders that Plaintiff is subject to a prefiling order prohibiting her from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed.

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